



CONSTRUCTION AGREEMENT BETWEEN

FLTR LLC TR FOR 2217 SW EMBERS LAND TRUST

AND

TOTAL SMARTORS LLC

THIS AGREEMENT is a CONTRACT FOR SERVICES and is made this day
of , 2024 by and between:

TOTAL SMARTORS LLC ("DEVELOPER"), and

FLTR LLC TR FOR 2217 SW EMBERS LAND TRUST ("OWNER")
for (the "PROJECT") located in

2217 SW EMBERS TER CAPE CORAL FL 33991

Folio No: 16-44-23-C1-03713.0220

The DEVELOPER and OWNER agree as follows:

1) Contract Documents.

The terms of this contract include the terms and conditions of this contract and, incorporated by reference, the provisions in the other documents specifically listed in EXHIBIT A. The terms of this agreement shall prevail over any conflicting provisions in the documents incorporated by reference. If a conflict exists between the plans and the specifications, the specifications shall govern.

2) The Work.

Unless otherwise specifically noted, DEVELOPER shall provide directly or indirectly by subcontracting a license general contractor and pay for all labor, materials, equipment, tools, construction equipment and machinery, transportation, and other facilities and services necessary for the proper execution and completion of the Project.

2680 NW 97th AVE, DORAL FL 33172

CLIENT: (b)(7)(C) SMARTORS: _____

The work shall be done substantially in conformance with the plans and specifications that have been initialed or signed by each party. These plans and specifications are attached to this contract and incorporated into it as Exhibit A.

DEVELOPER SHALL NOT BE RESPONSIBLE FOR THE FOLLOWING:

- Existing Building Code violations, repairs and existing conditions;
- Any governmental fees associated with construction;
- Additional work requested by the building inspectors;
- Changes by Owner, Architect and/or Building Department;

3) Contract Price.

Owner agrees to pay the total contract price for all labor and materials furnished and work performed by Developer, of:

Price: **\$ 286,000 Turn Key Home. All IN (soft costs+hard cost+permits fees)**
1,904 Living Area and 2,504 Total Sqft

Allowances included in this price

- Up to 40 Truck Loads of Dirt
- Up to \$3,500 for clearing land

- **Payments.**

The contract price will be paid as per the CONSTRUCTION PAYMENT SCHEDULE attached to this contract and incorporated into it as EXHIBIT B.

5) Acceptance, Final Payment, and Occupancy.

Upon receipt of written notice that the work is ready for final inspection and acceptance, Owner will promptly inspect the work. When the Work receives a certificate of occupancy, Owner will promptly pay (or cause to be paid) the balance due under the contract less an amount equal to the cost to complete any missing or unfinished punch list items.

Developer agrees to provide Owner with a Contractor's Final Affidavit stating that all subcontractors and suppliers have been paid or showing those unpaid and the amounts thereof. The amounts withheld for punch list items will be paid to Developer immediately upon completion of each of the punch list items. Occupancy will be granted to Owner when construction is substantially completed, the certificate of occupancy is issued, and Developer receives payment of the final payment (including payment for all change orders and overages of allowances), less any money held for incomplete items.

6) Commencement and Completion.

Time is of the essence in the performance of the obligations of Owner and Developer under this contract.

2680 NW 97th AVE, DORAL FL 33172

CLIENT (W). SMARTORS _____

Construction shall commence within thirty (30) days after all of the following conditions have been met: authorization to start by the lending institution; plot plan, Final House Plans, and Building Specification all signed by DEVELOPER and owner; survey, building and septic permits acquired; and piling driven, if required. The Official start date of record shall be the date of the footing inspection as indicated by the inspector on the building permit.

Any time lost by reason of change in plans or specifications requested by Owner, other acts of Owner, strikes, weather conditions not reasonably anticipated, or any other conditions that are not within Developer 's control shall be added to the specified time of completion and Developer shall not be liable for such delay. For any delays not the responsibility of Developer, the contract price shall increase by the difference, if any, in Developer 's costs occasioned by such delay.

7) Taxes.

Owner shall pay all real property taxes and taxes imposed upon the improvements on the residence when they are due. Developer shall pay all necessary sales, use, and similar taxes on materials used in construction that are legally enacted at the time this contract is signed.

8) Change Orders.

a) No change orders will be allowed.

b) In the event the Developer is required by the Owner to perform additional work for which the amount of compensation is not previously agreed upon, the Developer shall prepare and submit to the Owner a proposal describing the estimated quantities and cost involved. The Developer shall keep accurate, detailed and itemized records of the costs of any such change and shall report such costs to the Owner. The Developer shall furnish to the Owner all documents required by the Owner, to evidence the expenditures of the Developer as a result of such change.

9) Insurance.

Developer shall purchase and maintain at Developer's own expense, all necessary workers' compensation and liability insurance, commercial general liability insurance, and comprehensive automobile liability insurance to protect Developer from claims for damages because of bodily injury, including death, and for

damages to property that may arise both out of and during operations under this contract.

10) Owner's Obligations.

Owner is to prepare all work areas so as to be acceptable for Developer's work under this contract.

Owner shall furnish information and services under their control to Developer promptly to avoid delay.

Owner warrants that all utilities necessary for the completion of construction are to the property line and/or accessible to Developer.

11) Supervision.

Owner agrees that the supervision of the work performed under this Agreement is under the exclusive direction of the Developer, and Developer shall have control over construction means, methods, techniques, sequences and procedures and for coordinating all portions of the work. OWNER SHALL NOT INTERFERE WITH THE WORK, NOR CAUSE ADDITIONAL WORK TO BE CARRIED ON WITHOUT THE WRITTEN CONSENT OF THE DEVELOPER. ALL OF THE WORK SHALL BE DONE BY THE DEVELOPER OR SUBCONTRACTORS IN DIRECT CONTRACT WITH THE DEVELOPER.

12) Disputes.

Should any dispute arise relative to the performance of this contract that the parties cannot satisfactorily resolve, then the parties agree that the dispute shall be resolved by binding arbitration conducted by the American Arbitration Association. The party demanding arbitration shall give written notice to the opposite party and the American Arbitration Association promptly after the matter in dispute arises. In no event, however, shall a written notice of demand for arbitration be given after the date on which a legal action concerning the matter in dispute would be barred by the appropriate statute of limitations.

13) Termination.

If Developer fails to supply proper materials and skilled workers; make payments for materials, labor, and subcontractors in accordance with their respective agreements; disregards ordinances, regulations, or orders of a public authority; or fails to materially comply with the provisions of the contract, Owner may give Developer written notice to terminate. After seven (7) days if Developer has failed to remedy the breach of contract, Owner can give a second notice to terminate. If Developer still fails to cure the breach within three (3) days after the second notice,

Owner may terminate the contract and upon doing so, shall be released from any further liability or obligation under the contract. If any Phase is paid in full and not executed at the time of Termination by Client, client shall receive the refund of that phase funds advanced previously.

14) Warranties.

- A. ALL MATERIAL IS GUARANTEED TO BE AS SPECIFIED, AND THE WORK TO BE PERFORMED IN ACCORDANCE WITH THE SPECIFICATIONS SUBMITTED FOR THE ABOVE WORK AND COMPLETED IN A SUBSTANTIALLY WORKMAN LIKE MANNER.**
- B. DEVELOPER AGREES TO PROMPTLY MAKE GOOD, WITHOUT COST TO OWNER, ANY AND ALL DEFECTS DUE TO FAULTY WORKMANSHIP WHICH MAY APPEAR WITHIN ONE (1) YEAR FROM THE DATE OF COMPLETION AND ACCEPTANCE OF THE WORK BY OWNER, PROVIDED THAT THE OWNER IS NOT IN BREACH OF THIS CONTRACT, INCLUDING HAVING PAID IN FULL PER THE CONTRACT TERMS ANY MONIES DUE. THIS LIMITED WARRANTY IS THE ONLY EXPRESS WARRANTY PROVIDED BY DEVELOPER.**
- C. ANY IMPLIED WARRANTY OF HABITABILITY EXTENDS ONLY TO THE CONDITIONS OF THE PROJECT AT THE TIME OF COMPLETION AND DOES NOT EXTEND TO ANY CONDITIONS NOT KNOWN OR UNDER THE CONTROL OF THE DEVELOPER AT THE TIME OF COMMENCEMENT OF THE PROJECT OR TO ANY DEFECT CAUSED BY CONDITIONS OCCURRING SUBSEQUENT TO THE COMPLETION OF THE PROJECT.**
- D. ANY IMPLIED WARRANTIES INCLUDING (BUT NOT LIMITED TO) WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, HABITABILITY, AND GOOD WORKMANSHIP ARE DISCLAIMED AND LIMITED TO PROVISIONS OF THIS SECTION.**

15) Right to Cure.

FLORIDA LAW CONTAINS IMPORTANT REQUIREMENTS YOU MUST FOLLOW BEFORE YOU MAY FILE A LAWSUIT FOR DEFECTIVE CONSTRUCTION AGAINST A CONTRACTOR, SUBCONTRACTOR, SUPPLIER, OR DESIGN PROFESSIONAL FOR AN ALLEGED CONSTRUCTION DEFECT IN YOUR HOME. SIXTY DAYS BEFORE YOU FILE YOUR LAWSUIT, YOU MUST DELIVER TO THE CONTRACTOR, SUBCONTRACTOR, SUPPLIER, OR DESIGN PROFESSIONAL A WRITTEN NOTICE OF ANY CONSTRUCTION CONDITIONS YOU ALLEGE ARE DEFECTIVE AND PROVIDE YOUR CONTRACTOR AND ANY SUBCONTRACTORS, SUPPLIERS, OR DESIGN PROFESSIONALS THE OPPORTUNITY TO INSPECT THE ALLEGED CONSTRUCTION DEFECTS

AND MAKE AN OFFER TO REPAIR OR PAY FOR THE ALLEGED CONSTRUCTION DEFECTS.

YOU ARE NOT OBLIGATED TO ACCEPT ANY OFFER MADE BY THE CONTRACTOR OR ANY SUBCONTRACTORS, SUPPLIERS, OR DESIGN PROFESSIONALS.

THERE ARE STRICT DEADLINES AND PROCEDURES UNDER FLORIDA LAW.

16) Representations.

This Agreement constitutes the entire agreement between Owner and Developer, and supersedes all prior negotiations, representations, understandings and agreements, either written or oral. This Agreement may be amended only by written instrument signed by both Owner and Developer. Owner acknowledges that Developer has made no guarantees, warranties, understandings, nor representations (nor have any been made by any representatives of Developer) that are not included in the contract documents.

CONSTRUCTION INDUSTRIES RECOVERY FUND PAYMENT MAY BE AVAILABLE FROM THE CONSTRUCTION INDUSTRIES RECOVERY FUND IF YOU LOSE MONEY ON A PROJECT PERFORMED UNDER CONTRACT, WHERE THE LOSS RESULTS FROM SPECIFIED VIOLATIONS OF FLORIDA LAW BY A STATE-LICENSED CONTRACTOR. FOR INFORMATION ABOUT THE RECOVERY FUND AND FILING A CLAIM, CONTACT THE FLORIDA CONSTRUCTION INDUSTRY LICENSING BOARD AT THE FOLLOWING TELEPHONE NUMBER AND ADDRESS:

FLORIDA CONSTRUCTION INDUSTRY LICENSING BOARD 1940 N. Monroe St., Tallahassee, FL 32399-1039(850) 487-1395

17) Miscellaneous.

- A. Owner and Developer both represent that they are ready, willing and able to carry out the terms, provisions and conditions of this agreement. Owner's, or Contractor's refusal or inability to fully and timely perform any of the terms of this Agreement shall give either party the right to declare this agreement null and void and either party shall have the right to bring any and all legal and/or equitable actions against the other in conformity with the Laws of the State of Florida. Both the Contractor and the Owner shall additionally be entitled to recover all costs, losses, lost profits, loss of work and earnings, damages and expenses incurred; including but not limited to reasonable legal and attorney's fees.
- B. All materials shall be furnished in accordance with the respective industry tolerance of color variation, thickness, size, finish, texture, and performance standards.

C. Developer reserves the right to substitute building materials, appliances, equipment, fixtures or other items in the Project which may be necessitated by government agencies, job conditions, design changes deemed necessary by the architect, lending institutions, by the availability of materials, colors, brand names, or by material shortages, strikes, or similar situations, which in Developer's judgment require such changes, with prior notification to the Owner; provided, however that any substitute materials shall be of substantially similar or better quality to those specified in the Contract Documents.

18) Indemnification.

Owner waives any rights or claims Owner may have against Developer for any personal injuries and/or property damages incurred by anyone other than Developer and/or Developer's subcontractors on the property during the period of work, and shall indemnify, defend and hold Developer harmless from any claims asserted for such alleged injuries and/or damage.

Owner shall hold Developer harmless and shall defend and indemnify Developer for any claims, actions, suits, awards, damages, or other liability, including, without limitation, attorney's fees, professional witness fees, court costs, and other charges, arising out of or related to (i) Owner's breach of any term, condition, or representation in this Agreement; or (ii) arising out of or related to any claims, actions, awards, liabilities, or damages for any injury to person or personal property arising out of Owner's visits (including invitees and guests) to the premises and/or residence. For purposes of any indemnification provisions in this Agreement, the term " Developer " shall include its respective officers, directors, employees, agents, sureties, subcontractors, suppliers and servants.

19) Governing Law and Assignment.

This contract will be construed, interpreted, and applied according to the law of Florida. This contract shall not be assigned without the written consent of all parties.

20) Force Majeure.

A party shall not be liable for any failure of or delay in the performance of this Agreement for the period that such failure or delay is due to causes beyond its reasonable control, including but not limited to acts of God, war, strikes or labor disputes, embargoes, unavailability of materials, government orders or any other force majeure event.

21) Severability.

The invalidity or unenforceability of any provisions of this Agreement shall not affect the validity or enforceability of any other provision of this Agreement, which shall remain in full force and effect.

22) Effective Date and Signature.

This contract shall become effective on the day it is signed by both parties.

23) OWNER ACKNOWLEDGES RECEIPT OF THE FLORIDA CONSTRUCTION LIEN LAW WARNING ATTACHED AS EXHIBIT C.

WE THE UNDERSIGNED, have read, understand and agree to each of the provisions of this contract and hereby acknowledge receipt of a copy of this contract.

By Client: FLTR LLC AS TRUSTEE



Date: AUG 1 2024

It is expressly understood and agreed between the parties and all successors and assigns that this instrument is executed by the Trustee, not personally, but as Trustee in exercise of authority conferred upon such Trustee. No personal liability or responsibility is assumed by or shall be enforceable against said Trustee, either express or implied.

SMARTORS:

Date: _____

EXHIBIT "A" – Plans and Specification

1. \$ 286,000 . Single family house of: 1,904 Living Area and 2,504 Total Sqft
Bedrooms 4 Bathrooms 3
2. 2. Turn key Finished. All In : Soft Costs + Hard Costs . See Descriptive Memory.

EXHIBIT "B" – Payment Schedule

TODO CASH

Total		\$ 286,000.00			
FASES	PAGOS	FECHA ESTIMADA	DETALLES		DESCRIPCIÓN
PERMISOLOGÍA	\$ 57,200.00	1-30 días posterior a la compra del lote	CASH	20%	A la firma del contrato se debe transferir a Smartors el primer desembolso del 20% del costo del proyecto con el fin de: solicitar survey, preparar paquete de planimetría, y someterlo a la ciudad/condado. Este contrato se ejecuta después de la compra del lote.
FASE 1 DE CONSTRUCCIÓN	\$ 71,500.00	4-6 meses posterior a la compra del lote	CASH	25%	Después de ser aprobado el permiso de inicio de obra, se debe depositar a Smartors el 20% del total del costo de la Construcción para comenzar a trabajar en la primera etapa constructiva. Desde la fundación hasta el levantamiento de paredes.
FASE 2 DE CONSTRUCCIÓN	\$ 57,200.00	Mes 7 posterior a la compra del lote	CASH	20%	Al recibir el desembolso correspondiente a etapa 2, Smartors comenzará la instalación de trusses, sheathing, instalación de papel para el techo, rough de plomería, mecánica, y electricidad. Después de pasar las inspecciones, se da por finalizada esta fase.
FASE 3 DE CONSTRUCCIÓN	\$ 57,200.00	Mes 8 posterior a la compra del lote	CASH	20%	Al recibir el desembolso correspondiente a etapa 3, Smartors comenzará la instalación de ventanas y puertas exteriores, drywall, y pintura interna.
FASE 4 DE CONSTRUCCIÓN	\$ 28,600.00	Mes 10 posterior a la compra del lote	CASH	10%	Al recibir el desembolso correspondiente a etapa 4, Smartors comenzará la instalación de cocina, baños, puertas internas, y final de plomería, mecánica y electricidad.
FASE 5 DE CONSTRUCCIÓN	\$ 14,300.00	12-14 meses posterior a la	CASH	5%	Ejecución de jardinería, finalización de tanque séptico y trámite de certificado de ocupación (CO) y releases.
	\$ 286,000.00			100%	

EXHIBIT "C" – Florida Construction Lien Law Warning

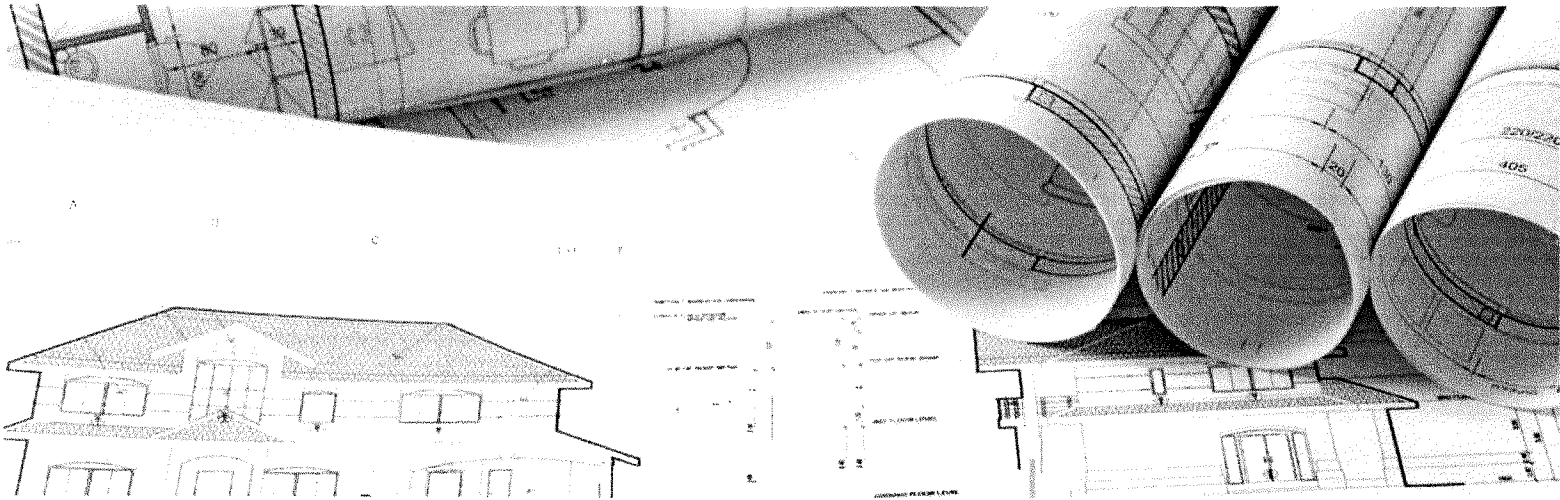
ACCORDING TO FLORIDA'S CONSTRUCTION LIEN LAW (SECTIONS 713.001-713.37, FLORIDA STATUTES), THOSE WHO WORK ON YOUR PROPERTY OR PROVIDE MATERIALS AND ARE NOT PAID IN FULL HAVE A RIGHT TO ENFORCE THEIR CLAIM FOR PAYMENT AGAINST YOUR PROPERTY. THIS CLAIM IS KNOWN AS A CONSTRUCTION LIEN.

IF YOUR CONTRACTOR OR A SUBCONTRACTOR FAILS TO PAY SUBCONTRACTORS, SUBSUBCONTRACTORS, OR MATERIAL SUPPLIERS OR NEGLECTS TO MAKE OTHER LEGALLY REQUIRED PAYMENTS, THE PEOPLE WHO ARE OWED MONEY MAY LOOK TO YOUR PROPERTY FOR PAYMENT, EVEN IF YOU HAVE PAID YOUR CONTRACTOR IN FULL. IF YOU FAIL TO PAY YOUR CONTRACTOR, YOUR CONTRACTOR MAY ALSO HAVE A LIEN ON YOUR PROPERTY. THIS MEANS IF A LIEN IS FILED YOUR PROPERTY COULD BE SOLD AGAINST YOUR WILL TO PAY FOR LABOR, MATERIALS, OR OTHER SERVICES THAT YOUR CONTRACTOR OR A SUBCONTRACTOR MAY HAVE FAILED TO PAY.

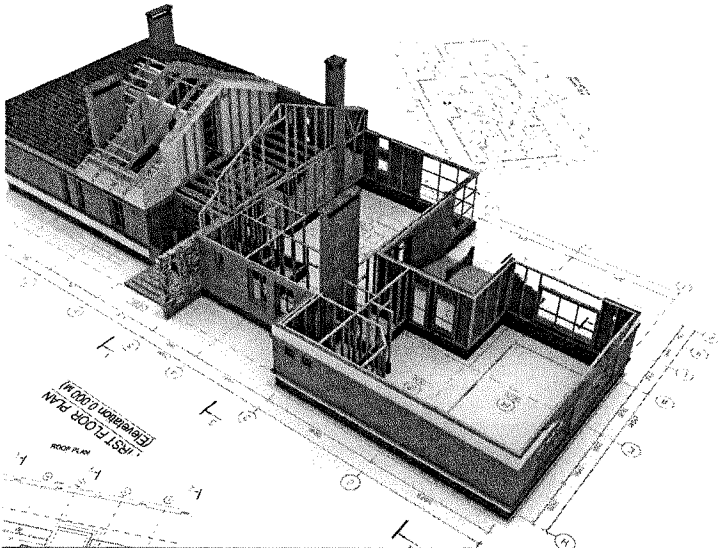
FLORIDA'S CONSTRUCTION LIEN LAW IS COMPLEX AND IT IS RECOMMENDED THAT WHENEVER A SPECIFIC PROBLEM ARISES, YOU CONSULT AN ATTORNEY.

SMARTORS

for Smart Investors



BUILD WITH US.



1. Land Purchase.
2. Construction process.
3. Selling or renting the property.

APROX TIME OF EXECUTION: 12-14 MONTHS.

NOTICE: This Estimated time is for a traditional single home and will not include any additional permits requested by any city/county.



SMARTORS
for Smart Investors

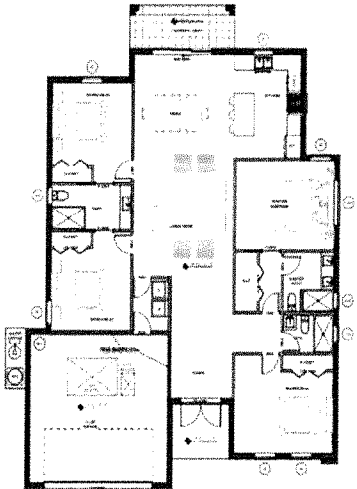
PERMIT AND CONSTRUCTION
ESTIMATED TIME :12 - 14 MONTHS

AMANTEA



4 BEDROOMS
3 BATHROOMS

AREA SUMMARY	
ENTRY	63 sq ft
COVERED LANAI	30 sq ft
GARAGE	448 sq ft
LIVING AREA	1804 sq ft
TOTAL UNDER ROOF	2806 sq ft



SMARTORS
for Smart Investors

DESCRIPTIVE MEMORY OF THE PROJECT.

Introduction

This Project will be carried out for the purpose of building and selling a property that will be very large and that is close to the minimum approved by the State for first time buyers.

Proposal: Construction of a 100% totally new property for its habitability and approval of inspections at the time of building and selling, with new, comfortable materials, without luxuries, but comfortable for its consumers..

SECTIONS:

- Spacious rooms.
- Open space kitchen.
- Comfortable bathrooms with accessories and doors.
- Green areas.
- Modern design.



SMRTORS

TECHNICAL SPECIFICATIONS.

TERRACE & GARAGE

- Steel garage doors according to code (automatic).
- Washer and dryer.

KITCHEN - BATHROOMS:

- Wood Cabinets.
- Built In Sinks
- Quartz top.
- Stainless steel appliances.
- Bathroom vanity with mirrors.
- Shower with ceramic coating and mosaic details and glass door in the master bath

FLOORS, WALLS AND CEILING

- Ceramic tile floors in all internal areas. Textured walls and ceilings.
- Ceiling Highs 10" along the house

PLUMBING

- Electric Water Heater
- Outlets for outdoor hoses.
- Well-known brand plumbing accessories.

DOOR – WINDOWS

- Entrance door with insulation system.
- Colonial model or panel interior doors
- Impact windows and doors

ELECTRICITY AND LIGHTING

- 200 amp electrical system.
- Take currents according to code.
- Washer and Dryer Hookups.
- Light fixtures throughout the property.
- Ceiling fans throughout.
- Smoke detectors according to code

STRUCTURE

- Construction in concrete blocks.
- Septic tank, if necessary
- Concrete walkway, walkway and terrace.
- Stucco finish with decorative bands.
- Foundation in monolithic slab or stem-wall.

AIR CONDITIONING AND INSULATION

- High efficiency air conditioning according to code.
- Insulation of ceilings, according to code.

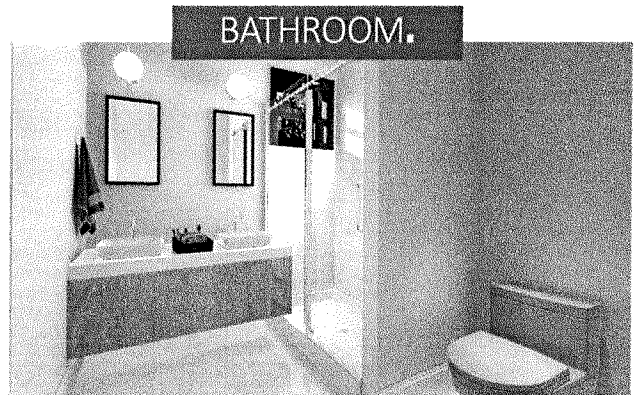
EXTERIOR SPECIFICATIONS

- Dimensional asphalt shingle roof
- Exterior coating (soffit) in aluminum.
- Gutters according to code
- Grass, trees and shrubs according to code
- Termite pretreatment
- Irrigation System

1 year workmanship warranty, 2 year systems warranty, 10 year structural warranty.

SMARTORS

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